

Arlington Town Meeting — Main Motion

ARTICLE NO. 95

Dated: 4/29/2026

I, Guillermo S. Hamlin, do hereby submit the following Motion:

Whereas, the Town of Burlington has adopted the following findings and determinations regarding the ICE detention facility located within its jurisdiction; and

Whereas, the tenant of the facility, the Department of Homeland Security (DHS), after more than a month-long delay, has denied the Town of Burlington's formal request to conduct an inspection of said facility; and

Whereas, credible and consistent reports have emerged of deplorable and inhumane treatment of detainee Marcelo Gomes while in ICE custody, reflecting unacceptable conditions at the facility; and

Whereas, the Town of Burlington, Burlington's Planning Board, and Congressman Tierney were expressly assured by Bruce Chadbourne, Field Office Director for the Department of Homeland Security, in a letter dated November 21, 2007, that "There are no beds in the holding areas; they are for temporary use only. No aliens will be held overnight in the facility..."; and

Whereas, United States Representatives Seth Moulton, Katherine Clark, and Jake Auchincloss have personally visited the facility and publicly confirmed information that violates the promise made above, specifically that ICE, in writing and orally, promised no overnight detention, yet detainees are being held overnight and for extended periods; and

Whereas, reports from federal officials and witnesses indicate that detainees have been subjected to inhumane conditions, including but not limited to being forced to sleep on cement floors with only a thin Mylar blanket, food insufficiencies, overcrowding, poor temperature control, and lack of hygiene; and

Whereas, Bruce Chadbourne, in the same letter referenced above, stated that "ICE and GSA will comply with any and all zoning ordinances as required by the Town," and whereas the Burlington Building Inspector deemed the holding cells a permitted "accessory use," yet ICE indicated that such holding cells were an essential component of the facility; and

Whereas, the Town of Burlington, through its Town Meeting, has formally condemned these violations of local zoning law and the inhumane treatment of detainees;

Now, therefore, be it resolved that the Town of Arlington hereby joins the Town of Burlington condemns these violations of local zoning law and the inhumane treatment of detainees at the ICE facility located in Burlington, Massachusetts; and
Be it further resolved that the Town of Arlington supports Burlington's call upon:

1. U.S. Immigration and Customs Enforcement to cease overnight and extended detentions at the Burlington facility and to comply fully with the conditions set forth by ICE itself; and
2. Federal, state, and local authorities to investigate and take corrective action, including

but not limited to gaining access to the property, to ensure compliance with Burlington's zoning bylaws, ICE's stated use of the property, and the humane treatment of all individuals held at the facility;

Furthermore, it is resolved that copies of this resolution shall be distributed by the Town Clerk to the Burlington Select Board, the Burlington Building Inspector, the Burlington Police Department, Representative Katherine Clark, State Rep. Sean Garballey & Ken Gordon, State Senator Cindy Friedman, the Governor of Massachusetts, and the Secretary of the Department of Homeland Security.

Comment:

This is the main motion of an Arlington Town Meeting resolution, which is similar to Burlington Town Meeting's resolution condemning the DHS ICE Boston Field Office at 1000 District Ave, Burlington, MA 01803.

Respectfully submitted,
/s/ Guillermo S. Hamlin
Precinct 14

Date Voted: _____

Action Taken: _____